Presidency and Procedure at the Early Ecumenical Councils

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The publication of the acts of the ecumenical councils from Ephesus I (431) to Nicaea II (787) in the Acta Conciliorum Oecumenicorum, initiated by Eduard Schwartz, is now approaching completion, and represents one of the great editorial and publishing achievements in late antique studies over the past hundred years.[1] Although this material has been less studied than it deserves, partly because of its forbidding bulk, historians of ecclesiastical politics have made frequent use of some of these volumes. One aspect, however, has received surprisingly little attention, and that is the evidence they provide on conciliar procedure.[2] The present study is devoted to two aspects of the matter, the identity of the presidents, or chairmen, at the councils, and the procedures they used to elicit the mind of the councils over which they presided.

I(a). Presidency and chairmanship

It is a truth universally acknowledged that no committee can function without a chairman. The same is all the more true of an ecumenical council, attended by bishops in triple figures. The standard modern accounts of the early ecumenical councils duly oblige us by naming the president, or chairman, of each one. It used to be common to attribute the presidency at the Council of Nicaea to either the emperor Constantine or Ossius of Corduba, though more recent studies admit that we have no real information on the identity of the chairman (or chairmen). The identity of the presidents at the following councils has not been thought open to doubt: Gregory Nazianzen and his successor in the see of Constantinople, Nectarius, are named as presiding at the Council of Constantinople of 381; Cyril of Alexandria is named as the chairman of the majority council at Ephesus I in 431, and his successor Dioscorus as the chairman of the 'Robber Council' of Ephesus II (449); the lay official Anatolius is recognized by those who have read the acts as the chairman at most of the sessions of Chalcedon in 451, with the senior Roman legate, Paschasinus, taking his place at the trial of Dioscorus in the third session; Eutychius of Constantinople, we are told, chaired the Second Council of Constantinople in 553, while the emperor Constantine IV himself presided over its successor council in 680-1; finally Tarasius of Constantinople features as the president of the Second Council of Nicaea in 787. But what do we actually find if we examine the conciliar acts, which survive for all these councils from Ephesus onwards?

I(b). Ephesus I

Let us begin with the Acts of Ephesus I. The minutes of the conciliar sessions never refer explicitly to presidency – a feature they share with later conciliar acts –, but the notion appears in a number of documents issued by the council in the period after Cyril of Alexandria had been placed under house arrest. A joint letter addressed to the clergy of Constantinople concludes, 'In

[1] The various parts of Volume I cover Ephesus I, while those of Volume II cover Chalcedon, with Constantinople II and related documents in Volume IV. The later councils are assigned to 'Series Two' (abbreviated here as ACO²), of which Volume I is devoted to the Lateran Synod of 649, Volume II to Constantinople III, and Volume III (in process of publication) to Nicaea II.

[2] Mention must be made, however, of R. MacMullen, Voting about God in Early Church Councils (New Haven, 2006), a bold exploratory study. See the review by Th. Graumann in ZAC 12 (2008), 172-4.

order not to insert a great quantity of signatures, we have restricted ourselves to the hands of the presidents (proevdrwn).' Their names are then given: Juvenal of Jerusalem and the three Roman legates.[3] Meanwhile, letters of protest or petition sent by the council in support of the suspended Cyril and Memnon of Ephesus regularly refer to these two men as the 'presidents' (proevdroi), 'leaders' (ejxavrcoi), or 'first men' (prwvtoi) of the council.[4] This cannot mean that, prior to their arrest, Cyril and Memnon were the 'two presidents' in an exclusive sense: Memnon did not rank so high (in the attendance and subscription lists his name always appears after Juvenal's) and his name is not prominent in the sessional minutes. What this evidence points to is the exercise of presidency by a number of senior bishops acting together.

Our prime evidence, of course, are the minuted sessions, starting with the opening session of 22 June 431, which saw the deposition of Nestorius. Even if none of the terms for presidency appear in the minutes, a number of minuted statements by bishops show them exercising presidential functions, in the following ways.[5]

(a) Instructions that Nestorius be summoned are given by Flavian of Philippi (39.1 and 41.1).[6]

(b) Instructions to bishops to testify before the council are given by Flavian (49 *fin*.) and Cyril (52).

(c) Instructions that something be read, or inserted in the acts, are given by Juvenal of Jerusalem (35, 43, 49), Cyril (36, 61), Acacius of Melitene (44), Palladius of Amaseia (46), and Flavian (49, 53 *fin*., 54 *init*., 60 *init*. and *fin*.).

(d) Requests to the bishops to express in turn their judgement on key documents are made by Cyril (44 *fin.* and 47.1).

A similar analysis may be made of the acts of other sessions of the council, down to early August, when the placing of Cyril and Memnon under house arrest excluded them from exercising presidency:

(a) Session of 10 July.[7] Instructions that something be read out, or inserted in the minutes, are given by Cyril (4), Juvenal (6) and Flavian (10). The proceedings are concluded by Theodotus (24). The brief attendance list gives only five names – Cyril, Juvenal, Memnon, Flavian and Theodotus (1).

(b) Session of 11 July.[8] The proceedings are opened by Juvenal (26). Instructions that something be read, or inserted in the minutes, are given by Memnon (29) and Cyril (34).

(c) Session of 16 July.[9] Since the business of the meeting was the presentation of a plaint from Cyril and Memnon, neither of them could preside, though Cyril's name is still placed first in the abbreviated attendance list. The proceedings are led by Juvenal (88.1). The bishops entrusted with delivering the first summons to John of Antioch are sent on their way by Acacius of Melitene (88.3), and deliver a report on their return when instructed to do so by Firmus of Caesarea (89.1). The delivery of the second summons is ordered by Juvenal (89.6)

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[3] ACO I 1/3, p.53,1-2, with the names of the presidents preserved in the Latin version, ACO I 3, p.119,13-15.

[4] For proevdroi see ACO I 1/3, p.17,15; p.33,5; p.34,24; p.66,4; for ejxavrcoi ibid., p.48 four times; for prwvtoi ibid., p.30,3.

[5] The references are to numbered sections in ACO I 1/2, p.8-54.

[6] Theodotus of Ancyra's expression of disagreement with Cyril of Alexandria's instructions for the immediate reading out of documents and statement that Nestorius should first be summoned (37) may be presidential but could also be read as a statement of opinion.

[7] ACO I 1/3, p.53-9.

[8] ACO I 1/3, p.59-63.

[9] ACO I 1/3, p.15-21.

(d) Session of 17 July.[10] Again Cyril's role is that of plaintiff. The statements by the chairmen are uniformly attributed to 'the holy council' without further specification.[11] If these were all uttered by one bishop (which cannot, however, be presumed), it will have been Juvenal, whose name heads the list of signatories.

(e) Session of 22 July.[12] The record of this session is a collection of documents rather than the record of an actual discussion. Instructions that documents be read out and inserted in the minutes are attributed once to Flavian and once to 'the holy council', a vague phrase that could refer to any of the presidents.[13]

In all, eight senior bishops are recorded as exercising presidential functions at some point in the proceedings: Cyril of Alexandria, Juvenal of Jerusalem, Memnon of Ephesus, Flavian of Philippi, Theodotus of Ancyra, Firmus of Caesarea in Cappadocia, Acacius of Melitene, and Palladius of Amaseia. All of them were metropolitans, with the exception of Flavian of Philippi, who, however, was representing his own metropolitan, Rufus of Thessalonica.

These same eight names are prominent in the attendance and subscription lists. It is these eight names who head the list of signatories to the acts of the session of 22 June; all save Palladius head the attendance list of the same session.[14] Compare also the sequences of names, approving Cyril's Second Letter to Nestorius and disapproving of Nestorius' reply, in the acts of this session: in the former only Palladius' name slips down the list, while in the latter two other names appear among them at the head of the list.[15] The abbreviated attendance list for the session of 10 July gives five names – Cyril, Juvenal, Memnon, Flavian, and Theodotus.[16] The attendance list for the session of 22 July is headed by the same eight names, with the exception again of Palladius; in the subscription list, however, there is a higher degree of variation.[17]

It is manifest that these bishops, with (in addition) the Roman legates after their arrival, were regarded as the senior bishops present, and exercised a joint presidency. The evidence, however, falls short of suggesting that they formed an official group, set apart from the other bishops. If this had been the case, they would have headed all the attendance and subscription lists. The variations in the lists suggest that there was no firm line between the 'presidents' of the council (meaning, in effect, its senior members) and those they presided over. What joint presidency amounted to was that the role of directing the meetings was shared between a number of bishops – including both those of obvious pre-eminence, notably Cyril, Juvenal and Memnon, and other metropolitans who chose (or were invited) to assume an active role.

Why has this fact, obvious from a reading of the acts, been overlooked in modern accounts of the council? If we turn to the classic account of this and all the other councils in Hefele-Leclerq,[18] or to the more recent treatments of Ephesus I by John McGuckin and Susan Wessel,[19] we find that the instructions delivered by bishops other than Cyril of Alexandria are demoted to 'requests' or 'proposals'. Mere proposals, unmistakable as such, occur in the acts, as when in the session of 22 June a proposal for hearing a report relating to the delivery of ultimata

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[10] ACO I 1/3, p.21-6.

[11] The same is true of the acts of the session of 31 August, which dealt with the affairs of Cyprus (ACO I 1/7, p.8-22).

[12] ACO I 1/7, p.84-117.

[13] ACO I 1/7, p.89,1 and 24.

[14] ACO I 1/2, p.3 and 55.

[15] ACO I 1/2, p.13-15 and 31-3.

[16] ACO I 1/3, p.53,11-20. The yet more abbreviated attendance list of 16 July gives the first four of these names, plus the Roman legates, ACO I 1/3, p.15,16-23.

[17] ACO I 1/7, p.84-5 and 111-2.

[18] Hefele-Leclerq, Histoire des conciles II 1 (Paris, 1908), 295-312.

[19] J. McGuckin, St Cyril of Alexandria: The Christological Controversy (Leiden, 1994), 77-88. S. Wessel, Cyril of Alexandria and the Nestorian Controversy (Oxford, 2004), 153-4.

to Nestorius at Constantinople is made by Cyril's assistant, the presbyter and notary Peter, and adopted by Flavian of Philippi acting as chairman; later in the same session, a proposal for the reading of extracts from the writings of Nestorius is again made by Peter and approved by Flavian.[20] But none of the instructions issued by Cyril's seven co-presidents receive similar confirmation, or differ in style from instructions issued by Cyril himself; they are clearly instructions, not proposals.

I(c). Ephesus II

By good fortune the acts of the first session of Ephesus II survive within the acts of the first session of Chalcedon, which blackened its memory and condemned its work, while the acts of a later session survive in Syriac translation.[21] While Dioscorus was certainly the dominating presence, we can again detect joint presidency. At Chalcedon Dioscorus insisted that the emperor Theodosius II had given 'supreme authority in the council' (th;n aujqentivan th`~ sunovdou) not only to himself but also to Juvenal of Jerusalem and Thalassius of Caesarea in Cappadocia.[22] In the acts Juvenal often takes the role of chairman – admitting Eutyches to the council, instructing bishops to deliver reports, and ordering the reading of documents.[23] In the delivery of verdicts on Daniel of Carrhae he actually speaks before Dioscorus.[24] Likewise Thalassius initiates business on occasion, or orders documents to be read.[25] At one point, in response to a plaint against Sophronius of Tella, Thalassius proposes that the case be entrusted to the next bishop of Edessa; the proposal is welcomed by episcopal acclamation, and then formally approved by Juvenal.[26]

Did other bishops share in the presidency? This is stated in the judgement delivered by the lay presidents at the end of Session I of Chalcedon:[27]

> It appears right to us according to the will of God, if it please our most divine and pious master, that Dioscorus the most devout bishop of Alexandria, Juvenal the most devout bishop of Jerusalem, Thalassius the most devout bishop of Caesarea in Cappadocia, Eusebius the most devout bishop of Ancyra, Eustathius the most devout bishop of Berytus, and Basil the most devout bishop of Seleucia in Isauria, who had authority at that council and directed it (tou;~ ejxousivan eijlhfovta~ kai; ejxavrconta~ th`~ tovte sunovdou), should receive the same penalty from the sacred council and be excluded from the episcopal dignity in accordance with the canons.

[20] ACO I 1/2, p.36,26–37,7; p.45,4-8.
[21] ACO II 1, p.77-195. The Syriac text, with a German translation by G. Hoffmann (on which I am dependent), is in J. Flemming, Akten der Ephesinischen Synode vom Jahre 449 (Berlin, 1917). See F. Millar, The Syriac Acts of the Second Council of Ephesus (449), in R. Price and M. Whitby, Chalcedon in Context: Church Councils 400-700 (Liverpool, 2009), 45-69.
[22] ACO II 1,p.75, §53. This receives adequate confirmation in the *sacra* given at §52.
[23] ACO II 1, p.83, §86; p.90, §153; 147, §554. Flemming, 81, 85, 115. In the Acts of Nicaea II Juvenal and 'those with him' are said is to have been the 'leaders' (e[xarcoi) at Ephesus II, admittedly in a context where reference could not be made to Dioscorus (*ACO*² III 1, p.228,22-3).
[24] Flemming, 71.
[25] ACO II 1, p.86, §116; p.189, §907. Flemming, 11-13, 117, 131.
[26] Flemming, 85.
[27] ACO II 1, p.195,16-23.

But the presidential status of the three bishops in this list who are additional to those already discussed is only partially confirmed in the acts. Eusebius of Ancyra duly admits monks from Edessa to the council, and orders documents to be read.[28] But Eustathius of Berytus and Basil of Seleucia are never recorded as fulfilling a presidential role in any capacity, and in the lists of bishops neither come in positions that suggest a corresponding seniority. In contrast, a further name, Stephen of Edessa, is recorded on several occasions as ordering documents to be read or included in the acts;[29] and he occupies a prestigious position in the bishops' lists, either immediately after Thalassius or even before him.[30] His standing at Ephesus II reflected that of his predecessor Memnon at Ephesus I. It is to be noted that Stephen was not in favour at Chalcedon: at a later session he was stripped of episcopacy, because of the dubious validity of his election.[31] It is puzzling that he was not included in the list of bishops who were made to take responsibility for the 'Robber Council'.

Mention may also be made of Cyrus of Aphrodisias, who is recorded on one occasion as ordering a document to be read;[32] and his status is shown by his high position in the bishops' lists. This again suggests that presidential functions were not restricted to an official list of presidents, but could be exercised on occasion by any of the more senior metropolitans. As at Ephesus I, there was not only joint presidency, but also no sharp dividing line between those presiding and those presided over.

I(d). Chalcedon

Proceeding to the Council of Chalcedon, we should note first that embarrassment or incredulity at lay chairmanship led many older treatments to describe Pope Leo's senior legate, Bishop Paschasinus of Lilybaeum, as the chairman of the council. In fact, all save one of the numbered sessions were chaired by laymen, generally a team of court officials led by the *magister militum* Anatolius, though one of the sessions (Session VI at which the Definition was solemnly read and acclaimed) was attended and chaired by the emperor Marcian himself.[33] Paschasinus acted as president on a single occasion, at Session III,[34] at which Dioscorus of Alexandria was tried and condemned. This session was not attended by the lay officials, doubtless to give the impression that Dioscorus' condemnation was a free decision of the bishops.[35] How was it chaired?[36]

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[28] ACO II 1, p.186, §886. Flemming, 13, 119.
[29] ACO II 1, p.90, §156; 189, §909. Flemming, 123.
[30] ACO II 1, p.78, §78.6-7; p.182, §884.3-4.
[31] ACO II 1, p.401–12.
[32] Flemming, 15.
[33] Note, however, that the officials did not attend the unnumbered Session on Carosus and Dorotheus (ACO II 1, p.458-60), nor the unofficial and unminuted sessions chaired by Anatolius of Constantinople, for which see Price in Price and Whitby, op. cit. (n. 21), 97-9.
[34] The Greek Acts and the *versio antiqua* of the Latin place the trial of Dioscorus (on 13 October) before the first discussion of the faith (on 10 October) and number it as Session II, in order to achieve a clearer thematic sequence; but, as Rusticus realized, it is better if the numbering follows a chronological sequence with the trial of Dioscorus as Session III. Throughout this article I follow Rusticus' numeration of the sessions of Chalcedon, as do Hefele-Leclerq, Histoire des conciles II 2 (Paris, 1908), 649-834 and R. Price and M. Gaddis, The Acts of the Council of Chalcedon, 3 vols (Liverpool, 2005).
[35] It cannot be claimed that there was a principle that only bishops could judge bishops, since the first session concluded with the interlocutory deposition of six bishops (ACO II 1, p.195, §1068), and yet the session was chaired by the lay officials. But by Session III the latter were keeping their distance, and even claiming (at Session IV) that Dioscorus had been deposed by the bishops 'without the knowledge of the most divine head and of ourselves' (ACO II 1, p.305,21-2).
[36] The references are to numbered sessions in ACO II 1, p.204–37.

The leading role was taken by Paschasinus, the senior papal legate; indeed at the beginning of the session he stated explicitly that it was he, as Pope Leo's representative, who was the true 'president' of the council (4).[37] Nevertheless, the evidence again points to shared presidency. In the course of the session Dioscorus was summoned to trial three times. The delivery of the first summons was proposed by the two highest-ranking eastern bishops at the council, Anatolius of Constantinople and Maximus of Antioch, and then adopted by 'the holy council', which nominated three bishops to deliver the summons (12-14). Likewise, a second summons was proposed by Maximus of Antioch and Eusebius of Dorylaeum, and then approved by 'the holy council', which again nominated three bishops to deliver the summons (24-7). Finally, a third summons was proposed by Florentius of Sardis and approved by Paschasinus, while the choice of bishops to deliver the summons was again made by 'the holy council' (66-9). These statements and decisions by 'the holy council' must have been made by a single bishop on behalf of the whole assembly. Was this Paschasinus himself? Yet after the clear instructions by 'the holy council' relating to the second summons, Aetius, archdeacon and chief notary, asked the bishops again whether they wished to send a second summons (28); and after the nomination by 'the holy council' of bishops to deliver the third summons, Anatolius of Constantinople spoke up to confirm their choice and the instructions given to them (71). This suggests that the mouthpiece of 'the holy council' was not Paschasinus, the senior bishop present, but (at each point) an unnamed eastern bishop, sufficiently senior to act as co-chairman in approving a proposal, but not so pre-eminent as to be the final and incontestable voice. For the rest of the session the following analysis may be offered:

(a) Returning envoys are instructed to report by Anatolius (10, 16, 75) and Stephen of Ephesus (33), while the witnesses from Egypt are admitted by 'the holy council' (40) and formally addressed by Paschasinus (44), his fellow Roman legate Lucentius (52) and John of Sebasteia (59).

. (b) Instructions that something be read, or inserted in the minutes, are given by Paschasinus (4, 18, 46, 51a), Maximus of Antioch (24), Diogenes of Cyzicus (35), Lucentius (42), Romanus of Myra (50), Peter of Corinth (50a),[38] Marinianus of Synnada and Pergamius of Antioch in Pisidia (55-6), John of Sebasteia (61), Patricius of Tyana (63), Maximus of Antioch (77) and 'the holy council' (21, 65).

(c) Finally, we have Paschasinus performing the most important presidential task of all – that of consulting the bishops over the penalty to be imposed on Dioscorus (79-93) and delivering the first of the verdicts (94).

In all, at this Session III of Chalcedon Paschasinus undoubtedly took the leading role. Yet in the work of directing the session he was assisted by a second Roman legate, Lucentius, and by no fewer than ten named metropolitan bishops.[39] We may still speak of joint presidency.

What of the far more numerous sessions that were chaired by lay officials? Throughout them, all statements from the chair are attributed impersonally to 'the most glorious officials and the most eminent senate'. They are named in each attendance list: 19 at Session I, 18 at Sessions II and IV, and a reduced tally of three at all the other numbered sessions. 'The most magnificent and most glorious Anatolius, *magister militum*, former consul, and patrician' is always the name given first. The other two officials present with him at every one of the sessions he attended were the praetorian prefect Palladius and the master of the offices Vincomalus. On the analogy of the practice when bishops were co-chairing, we should not assume that all the chairing was done by Anatolius, with the other officials sitting there in silence.

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[37] A one-word lacuna in the Greek (ACO II 1, p.204,29) can be supplied from 'praesidere' in the Latin version (ACO II 3, p.277,13).

[38] To be supplied from the Latin version, ACO II 3, p.289,13-15.

[39] All the eastern bishops named above were metropolitans, save Eusebius of Dorylaeum.

I(e). Constantinople II

Let us proceed to the Second Council of Constantinople (553). Since after Chalcedon the primacy of the see of Constantinople in the eastern provinces was not disputed (by the Chalcedonians, that is), it is tempting to suppose that Patriarch Eutychius of Constantinople was the sole chairman, in the same way that a metropolitan bishop would be the sole chairman at synods of his province. But a different arrangement is suggested by the opening pages of the acts, where (uniquely) the bishops exerting presidential functions are named. After the attendance list, the acts of the first session continue as follows:[40]

> (2) Diodore, archdeacon and *primicerius* of the most devout notaries, said: 'Theodore, a *spectabilis* and silentiary, is outside your most religious consistory, sent by the most pious and most Christian emperor. What we propose depends on your good pleasure.'
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> (3) The most holy archbishop and patriarch Eutychius said: 'Let him enter.'
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> (4) When this had been done, the most holy archbishop and patriarch Apollinarius said: 'For what reason has your greatness come to us?'
>
> (5) Theodore, *spectabilis* and silentiary, said: 'Our most pious and most Christian master has sent me to your beatitudes to give you a most pious document to be read before your holy council.'
>
> (6) The most holy archbishop and patriarch Domninus said: 'Let the most pious document that the magnificent Theodore has mentioned be appropriately received and read.'…
>
> (8) Stephen, George and Damian the most religious bishops representing Eustochius the most holy patriarch of Jerusalem said through one of them, Stephen the most devout bishop of Raphia: 'May the magnificent Theodore depart, now that he has fulfilled the command of the most pious emperor.'
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> (9) When the *spectabilis silentiarius* had departed, the holy council said: 'Now that the contents of the imperial document that has been read out have been made known, and because there has been correspondence between ourselves and Vigilius the most holy pope of Elder Rome that relates to the present matter, we think it necessary that before anything else it should be read and made public.'

It is notable that the statements coming from the chair are attributed in turn to Eutychius of Constantinople, Apollinarius of Alexandria, Domninus of Antioch, and the three bishops representing Eustochius of Jerusalem – that is, to the four patriarchs in the order of the dignity of their sees. After this point, however, all statements coming from the chair are attributed in the Acts to 'the holy council', without further specification. That 'the holy council' at the end of this passage is Eutychius is clear from the reference to his correspondence with Pope Vigilius, but the way in which all the patriarchs have been introduced as presidents makes it unlikely that he was the sole spokesman for 'the holy council' throughout the rest of its proceedings. Joint presidency was still the norm.

I(f). Constantinople III

[40] ACO IV 1, p.8-14, translated in Price, The Acts of the Council of Constantinople 553 (Liverpool, 2009), I, 188-98.

At Constantinople III (680-1) Sessions I-XI and the final Session XVII[41] were chaired by the emperor Constantine IV. This was partly because the then patriarch embraced the orthodox position only half way through the council, and partly because the contraction of the empire, and therefore the less exalted status of the emperor himself, made it appropriate for him to preside in person in session after session. Contrast the position of Constantine the Great at Nicaea or of Marcian at Chalcedon: each put in appearances at the council he had summoned, and chaired that council when present; but they would surely have regarded a more continuous involvement in the conduct of its business as beneath their dignity.[42] In the sessions of Constantinople III chaired by the emperor there could, naturally, be no question of joint chairmanship. In the remaining five sessions, however, the emperor was absent, and represented by four government officials. These sessions display a common sequence. First, either an archdeacon (or deacon) of the see of Constantinople opens proceedings with a summary of the previous session and a reading of its acts. All the subsequent statements that are presidential are attributed to 'the most glorious officials and the holy council', or (less frequently) to 'the most glorious officials' *or* 'the holy council'.[43] In contrast, statements attributed to named individuals are not presidential in character. In these sessions the phrase 'the holy council' introduces, each time, statements by an unnamed bishop exercising presidency, or at least taking the lead in conducting the business of the council on behalf of the assembled bishops. Was this role exercised by a single hierarch or (as at previous councils) by a number of senior bishops? The Roman delegates are likely to have left the conduct of the business to the Greeks. Patriarch Macarius of Antioch was a monothelete defendant, and his orthodox successor Theophanes was not appointed till the council was well advanced, and attended only the last four sessions;[44] the patriarchates of Jerusalem and Alexandria were represented by monks of presbyteral rank. Consequently, none of the bishops present were of truly comparable standing to Patriarch George of Constantinople, once (at the eighth session) he had publicly nailed his flag to the dyothelete mast. Indicative is the repeated occurrence in the Acts of the phrase 'George the most holy archbishop of Constantinople and the council under him'.[45] It is therefore likely that, while the representatives of the patriarchal sees were all treated with equal honour, it was George who acted as the mouthpiece of 'the holy council'.

What was the relationship between the senior bishops and the lay officials who represented the emperor during his absence? Whenever there is dialogue between the officials and 'the holy council', it is the officials who act as chairmen, setting the agenda, directing the sequence of business, and eliciting the judgement of the bishops.[46] This suggests that throughout these sessions it was the lay officials who chaired the council, while the leading bishops (in practice George of Constantinople) took over in conducting the detailed business that required their special competence. In all, Constantinople III revived the lay presidency that had been so prominent at the Council of Chalcedon.

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[41] The Latin version adds an extra session (ACO² II 2, p.705-51) before the final one, making it the eighteenth. But this extra session is simply the plan for a session that did not actually take place (ACO² II 2, p.xviii-xix).

[42] Constantine attended the ceremonial opening of the Council of Nicaea (Eusebius, *Vita Constantini* III 10-12) and a later session or sessions, where he exerted personal influence to secure agreement among the bishops (ibid. 13; and Eusebius' letter to his church in Socrates, *Historia Ecclesiastica* I 8.41). But he doubtless left the task of directing the council to its episcopal 'presidents' – the `proevdroi` referred to at *VC* III 13.1, notable as yet further evidence of joint presidency. Marcian attended and chaired Session VI of Chalcedon, at which the new Definition was solemnly acclaimed.

[43] ACO² II 2, p.522-704.

[44] He first appears as patriarch in the attendance list of Session XIV (ACO² II 2, p.630,1).

[45] For example, at ACO² II 1, p.44,29; p.52, 3; p.188,7.

[46] ACO² II 2, p.564-8, 578-84, 610-12, 704.

I(g). Nicaea II

The Second Council of Nicaea, or Seventh Ecumenical Council, of 787 followed a different pattern. Two imperial officials attended, but the Acts stress that they did so merely as 'auditors' (ajkrowmevnwn).[47] In fact for most of the time presidency was exercised by a single bishop, Patriarch Tarasius of Constantinople. This reflected a contraction of the Byzantine Church and its sphere of influence. A mere two presbyters attended as legates of the Roman Church, in contrast to the six Roman representatives, including three bishops, who had attended Constantinople III.[48] They played little part in the council; it is emblematic of their insignificance that, although it was they who had brought letters from the pope both to the emperors (Constantine and Irene) and to Tarasius, it is not they but imperial and patriarchal officials who presented these documents to the council.[49] Meanwhile, the three oriental patriarchs were ostensibly represented by two former *syncelli*, but their status as patriarchal legates was a fiction concocted in Constantinople.[50]

In fact, the only prominent member of the council from outside the patriarchate of Constantinople was Constantine metropolitan of Cyprus. His status was much enhanced by the important role that he and his predecessors had played in resistance to imperial iconoclasm.[51] This earned him the privilege of acting as co-president. He was prominent at the beginning of the first session, when he formally proposed to the assembled bishops that, in accordance with the wishes of Tarasius, certain bishops under accusation should be heard by the council.[52] At the beginning of both the fourth and the fifth sessions, he likewise gave instructions for the reading of patristic testimonies, and proceeded to comment on many of these texts.[53] The notion of joint chairmanship had not died a death, despite the dominant role taken by Patriarch Tarasius.

I(h). A conclusion on presidency

The conclusions from this analysis may be spelled out briefly. In a local council, of a province or patriarchate, one bishop (metropolitan or patriarch) was the acknowledged leader and spokesman, and the natural chairman of the meeting. For example, in the acts of a synod held at Antioch in 445 to hear the case against Bishop Athanasius of Perrhe the presidential role is monopolized by Bishop Domnus of Antioch.[54] But prior to the Arab conquest of Syria and Egypt there was no single primate at ecumenical councils, and what we find, in consequence, is that presidency was exercised by a number of senior bishops acting in concert. We have also observed that, at the two Ephesine councils and at Chalcedon, there was no sharp dividing line between the bishops presiding and those presided over: in addition to the undisputed leaders among the bishops (at Chalcedon, the papal legate Paschasinus and Bishop Anatolius of Constantinople) a number of metropolitans exercised presidential functions on occasion, without, however, enjoying a superior ranking of the kind that would have found expression in a consistently senior position in the attendance and subscription lists.

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[47] See ACO² III 1, p.36,13-15, and the parallel passages in the later sessions.
[48] Contrast ACO² III 1, p.18,10-14 to ACO² II 1, p.16,3-17. The Roman delegation at Constantinople III consisted of two presbyters and a deacon representing the pope personally, and three bishops representing the Roman Synod of 680.
[49] ACO² III 1, p.116,13-18; p.172,1-5; p.172,24–174, 2.
[50] See E. Lamberz in ACO² III 1, p.liv-lvi.
[51] See R. Janin in DHGE 12 (1953), 795-6.
[52] ACO² III 1, p.40,13-17.
[53] J.D. Mansi, Sacrorum Conciliorum nova et amplissima collectio, XIII (Florence, 1767), 4C, 157E, and *passim*. Other bishops commented on the testimonies, but less frequently.
[54] This document comes in the Acts of Chalcedon, ACO II 1, p.428-40.

Chalcedon, however, with its assignment to Constantinople of a territory to administer, and its settling of the boundary between the patriarchates of Antioch and Jerusalem, laid the foundation for the recognition of four 'patriarchal' sees in the east. By the Second Council of Constantinople the title patriarch was always given, and now reserved, to the incumbents of these sees. It is they, and they alone, who exercised a presidential role at Constantinople II.

The Arab conquest of Syria and Egypt placed joint presidency under threat. From now on the patriarch of Constantinople enjoyed an unrivalled leading position. It is true that the claims to full ecumenical status by the councils of Constantinople III and Nicaea II required the bishop of the imperial city to treat the legates of the Roman see and of the oriental patriarchates as colleagues equal to him in rank, as together they embodied the Pentarchy. But this was a fiction of courtesy. It is also true that the dominant position of the patriarch of Constantinople was dented at Constantinople III by the leading role played by the emperor himself, but the circumstances were exceptional. In contrast, Tarasius of Constantinople dominated Nicaea II with ease. Even here, however, the notion of joint presidency was not defunct: it is evidenced in the prominent part played by the metropolitan bishop of Cyprus, as an acknowledged champion of iconophile orthodoxy.

We have noted a few of the numerous cases in the conciliar acts where presidential statements are attributed to 'the holy council', without further specification. The use of this formula for presidential utterances implies that the authority of the presidents lay not so much in their primacy as in a representative role, a fact to be remembered as we proceed to examine the exercise of their office.

II(a). Presidency in practice

Before proceeding to an analysis of how presidency at ecumenical councils was exercised in practice, it will be instructive to describe the procedure of the most prestigious parallel in Roman secular society, namely, the Roman senate. How typical this was of city councils throughout the empire it would be temerarious to speculate, though at least the senate of Constantinople is likely to have imitated its Roman forbear.[55] In any case, this parallel will sharpen our awareness of what in conciliar procedure was standard practice and what reflects the special character of ecclesiastical gatherings.

For the conduct of debates in the Roman senate we are best informed for the early principate, and here I shall follow the account given in the study by Richard Talbert.[56] This may seem very distant in time from the church councils of the later empire, but the senate of the late imperial period took pride in the traditionalism of its procedure.[57]

At a session of the senate the president (normally one of the consuls) would begin with a *relatio*, raising the business to be discussed. He would typically present an item of business in a neutral fashion, inviting proposals, though it must often have been the case that his presentation pointed unambiguously to a particular decision. If the matter was uncontentious and the solution obvious, a decree could be agreed without debate. But if debate was called for, the president would then ask all the senators present to express their opinion individually in order of seniority – this was called the *interrogatio*. Talbert argues that, although it is likely that junior members were sometimes passed over, there is no reason to suppose that this ever became the norm; he also

[55] Note A.H.M. Jones's suggestion that the nucleus of the senate of Constantinople, when it was founded, consisted of Roman senators resident in the East: The Later Roman Empire (Oxford, 1964), I, 132.
[56] R. Talbert, The Senate of Imperial Rome (Princeton, 1984), chs 7-8 (p.221-302).
[57] Symmachus wrote to Stilicho in 397 about the vote declaring the rebel Gildo a public enemy, 'Consulti igitur in senatu more maiorum – neque enim sine legitimo ordine iudicii auctoritas stare potuisset –, ingenti causae devotis sententiis satisfecimus' (*ep.*4.5, MGH.AA, VI 1, p.99, 31-2).

criticizes the view that in the course of the second century the traditional expression of individual views was replaced by orchestrated acclamations.[58] When expressing his opinion in response to the *interrogatio*, each senator was free to agree to a proposal already made or to make a fresh proposal. This could consist of moving that no action be taken or that a vote be postponed; it was even open to any speaker to take the opportunity to discourse on some entirely new topic. At the close of the *interrogatio*, it was the responsibility of the president to decide which proposals to put to the vote and in what order, a process that continued until one proposal had gained majority support. Voting took the form of the senators separating into two groups on the floor of the house. The result must often have been clear without a headcount; the names of those voting for and against were not recorded.

Also relevant for our topic is the procedure in trials before the senate.[59] Accusations had to be presented by a plaintiff (*delator*). The hearing would begin with a reading of the charges, and a decision would be made as to whether they were to be heard together or separately. There followed speeches by both advocates for the prosecution (generally senators chosen by lot) and the defence (often the defendant himself); after this the evidence, both oral and written, would be presented. An *interrogatio* would then follow, in the usual way, with each senator combining verdict and sentence in a single proposal.

II(b). Dioscorus' Trial at Chalcedon

With this as our model of an established and recognized procedure in the Roman world, let us take some examples of how church councils conducted business. Session III of Chalcedon invites our attention, since it is the only numbered session of the council that was presided over by bishops rather than state officials.[60] The chief presider was Pope Leo's senior legate, Paschasinus of Lilybaeum; he was assisted (as we saw above) by a number of co-presidents from among the eastern metropolitans. The business of the session was the trial of Dioscorus of Alexandria. Since this had been initiated at the first session of the council, there was no need for a fresh introduction (or *relatio*) by the chairman. Paschasinus approved the reading of a further plaint by Dioscorus' chief accuser, Eusebius of Dorylaeum, and the presidents sent Dioscorus the three summonses that were required before a trial could proceed without the presence of the accused. Between the sending of the second and third summonses, four witnesses from Alexandria were admitted; on instructions from the presidents, their written plaints were read out. After a report had been received of the unavailing delivery of the third summons, the court proceeded to *interrogatio* and judgement. Several peculiarities in this sequence may be noted.

Dioscorus' decision to absent himself excluded speeches for the defence; but there were also no speeches for the prosecution. This contributed to the peculiarity that the specific charges against him were not formally presented. The verdicts of condemnation elicited by the *interrogatio* made mention of the following offences of which he stood accused: receiving Eutyches back into communion even before Ephesus II had quashed his condemnation at the Home Synod of 448, the unjust condemnation at Ephesus II of Flavian of Constantinople and

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[58] Talbert, op.cit., 249-52, 297-302. The one meeting of the senate for which official minutes survive was that held in 438 to receive the Theodosian Code. The senators greeted the code with prolonged acclamations, Theodosiani Libri XVI, ed. Th. Mommsen (Berlin, 1905), 1-4. This was doubtless the standard procedure in the reception of imperial edicts.

[59] Talbert, op.cit., 480-7.

[60] The Greek version of the proceedings of this session is in ACO II 1, p.199-237, but it needs to be supplemented from the fuller record in the Latin version (ACO II 3, p.276-346). For an English translation that combines the two see Price and Gaddis, op. cit. (n. 34), II, 38-110. For fuller argumentation for the points I make here see ibid., 29-35.

Eusebius of Dorylaeum, the suppression of Leo's Tome at Ephesus II, and the excommunication of Pope Leo shortly before the Council of Chalcedon opened. But at no stage of the proceedings were these charges formally set out. Particular unclarity attaches to the question whether Dioscorus was under trial as a heretic. When at Session V the chairmen pressed for the rejection of the 'from two natures' formula on the grounds that Dioscorus had championed it, Anatolius of Constantinople made the objection, 'It was not because of the faith that Dioscorus was deposed.'[61] On the other hand, Eusebius of Dorylaeum had included charges of heresy in the plaints he had presented at both the first and third sessions of the council, and these were echoed, admittedly in vague and rhetorical language, in the letter sent by the council to the empress Pulcheria.[62] The lack of formal charges, properly presented, left the matter unclear. The bishops were being asked to condemn Dioscorus without defining what they were condemning him for.[63]

The essential evidence for the prosecution were the acts of Session I of Ephesus II, read out at Session I of Chalcedon. The evidence presented in Session III consisted of four plaints from Alexandrian clergy. None of these related to the major charges against their bishop; their principal burden was that he had maltreated the relatives and assistants of his predecessor Cyril. Their reading at Chalcedon, and inclusion in the acts, was a piece of propaganda intended to discredit Dioscorus in the eastern churches, most of which revered Cyril's memory. Session III of Chalcedon was not a fair trial intended to promote justice, but a show trial for propaganda purposes.

But let us move on to the *interrogatio* and the sentence. After the failure of the third summons, Paschasinus proceeded to consult the bishops, asking them, no fewer than five times, to approve the conviction of an accused who had chosen to absent himself.[64] When this elicited an unambiguous response, he proceeded to issue a formal verdict of condemnation and deposition; verdicts to the same effect were then pronounced individually by the other bishops present.[65] Once the last bishop had spoken, the session came to an end: there was no final summing up by the president(s). Several points deserve particular attention:

(1) One is again struck by the lack of a proper formulation of the charges. The purpose of emphasizing Dioscorus' failure to attend was to secure episcopal unanimity, and it is striking that the great majority of the bishops gave this failure as the ground for condemnation. But it would be a mistake to suppose that failure to attend constituted in itself a 'contempt of court' so serious as to incur deposition: rather, it was argued that failure to attend was proof of a guilty conscience, and the seriousness of that would depend on the gravity of the charges.[66] It is therefore highly significant that very few bishops mentioned particular charges: their silence is evidence of a lack of enthusiasm for the whole proceedings. And the failure to set out the charges systematically begins to look like policy rather than accident.

(2) We saw that in the *interrogatio* of the Roman senate the chairman did not himself propose a verdict or decree, leaving that task to the senators he proceeded to consult; and even after a proposal had been made and found support among the senior senators present, more junior senators were free to make contrary proposals. In contrast, Paschasinus himself delivered a verdict; but he did so only after a preliminary consultation in which he invited the council to pass

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[61] ACO II 1, p.320, §14.

[62] ACO II 3, p.345-6, §103.

[63] Compare Ammianus Marcellinus' account of the treason trials at Antioch under Valens: 'When there was still doubt about the charges, the emperor was in no doubt about the penalties' (*Res Gestae* XXIX 1.18).

[64] ACO II 1, p.223-4.

[65] The attendance list for this session gives 204 names, from which a few should be subtracted and a few added (Price and Gaddis, II, 35). The verdicts of 192 bishops are given in the acts, a figure sufficiently high to suggest that all were required to speak and that the omission of a few names was an editorial accident.

[66] See Price and Gaddis, II, 31-2, which adduces the case of Athanasius of Perrhe, heard at Session XIV (XV) of Chalcedon: even after he had been condemned at two synods where he had ignored a threefold summons, a fresh trial was judged necessary.

judgement by acclamation. He sought to ascertain, and express, a truly communal verdict; and because it was a communal verdict, it was final and decisive. Up to this point Dioscorus had always been described as bishop of Alexandria, and normally with the appropriate honorific (qeofilevstato~); but once Paschasinus had issued his verdict (at the beginning of which he still called Dioscorus 'bishop of the city of Alexandria'), all the bishops who spoke after him referred to Dioscorus as the 'former bishop' of Alexandria and without an honorific.[67] This implies that, as soon as the senior bishop (in this case the chairman) had spoken, his verdict took immediate effect, and the bishops who spoke subsequently had no choice but to confirm it. Or perhaps we should say that every one of the verdicts was held to have immediate effect: they were sentences not votes. But, whatever our exact account of the process, it is clear that there was no scope for differing verdicts. Unanimity was required. 'Voting' was far from free. All a dissentient bishop could do was not to attend the session, as on this occasion many chose to do.[68]

(3) The form taken by *interrogatio* at church councils obviated the need for a separate process of voting. It was, however, supplemented by the practice of subscription – the signing of those acts that recorded a major decision. This both confirmed the authenticity of the record, and gave opportunity for bishops who had been absent to add their names. This was particularly important in the case of the condemnation of Dioscorus, since the number of bishops who attended his trial (a mere two hundred) had been unimpressive. A first attempt to augment the number is mentioned by Deacon Rusticus, in an annotation in his edition of the Latin Acts: he mentions that in the original version of the Greek Acts the list of sentences elicited by *interrogatio* was headed, prior to the names of the Roman legates and the bishops present, by the names (to give them in reverse order) of Pope Leo, St Peter, and the three Persons of the Holy Trinity.[69] The rather desperate resource of dragooning the Trinity into service to boost the number of judges was wisely excised from the extant editions. The subscription lists appended to the minutes of the session were more successful at expanding the numbers. The list in the Greek Acts contains 252 names, even though it is incomplete, while the Latin version gives 308 (in a quite different order), inflated by doublets and by the inclusion of a few bishops who were only elected after the council.[70] Original subscription lists consisted of the genuine signatures of each bishop, but there was plenty of scope for 'editing' the copies that were actually circulated. It is disturbing that the draft acts of a session of Constantinople III that never in fact took place include a long list of signatories;[71] such lists could be prepared in advance, as well as expanded after a council had been dissolved.

II(c). The rival bishops of Ephesus

As already observed, the trial of Dioscorus at Session III of Chalcedon was a show trial, which gave no opportunity for a real discussion of the issues. But at other sessions of the council the outcome was in no way predetermined. At Session XI[72] the bishops heard the appeal by the former bishop of Ephesus, Bassianus, against his deposition by his successor Stephen, who attended the session as the bishop currently occupying the see. There followed a completely unscripted debate between the two rival bishops and their supporters among the bishops present. At the end of the debate the imperial officials chairing the session asked the bishops for their judgement: the response was an acclamation in support of Bassianus. But the officials promptly

[67] For the wording of the verdicts (omitted in the Greek Acts) see ACO II 3, p.305-30.
[68] See Price and Gaddis, II, 35-7.
[69] ACO II 3, p.305, *Adnotationes Rustici*, 20.
[70] The two lists are in ACO II 1, p.230-7 and II 3, p.331-42.
[71] ACO² II 2, p.729-49.
[72] Session XII in the Greek Acts, ACO II 1, p.401-12.

recommended a different verdict – the rejection of both rivals and the election of a new bishop. This verdict was accepted by the bishops, first by acclamation and then in speeches by Paschasinus and Anatolius of Constantinople. But the Asian bishops pleaded against it, fearing that the see of Constantinople would impose a candidate of its own choice and charge a huge consecration fee;[73] and the session ended in disorder.

The debate was lively and uninhibited; the fact that the presidents were secular officials rather than senior bishops made it easier for bishops to express dissent. But equally striking is the high-handed behaviour of the presidents, who produced their own solution and pressed it on the bishops, exploiting their authority as representatives of the emperor. Similar cases earlier in the council included the overriding by the lay presidents both of the bishops' initial reluctance to draw up a new definition of faith (in Session II) and of their subsequent resistance to the amending of the draft definition (in Session V).[74]

It is noteworthy that on this occasion the chairmen did not think it necessary to conduct a proper *interrogatio*: instead, they pronounced judgement and had it confirmed by acclamation. They soon realized, however, that they had forced the matter through with insufficient consent, and at the next session on the following day they carried out a traditional, though much abbreviated, *interrogatio*, presenting the question as still an open one to the bishops' judgement: the acts record individual responses by thirteen of them.[75] Of these, six (including Anatolius of Constantinople and Paschasinus) gave explicit support to the officials' previous verdict that both Bassianus and Stephen should stand down, but three spoke in favour of the Church of Ephesus being left ('out of clemency') to choose one of the two current rivals, thereby avoiding a fresh election and a fresh consecration; the remaining four speakers expressed agreement with 'the declarations of the most holy fathers', ignoring the fact that 'the most holy fathers' were not in agreement, but presumably intending to side with the two senior speakers, Paschasinus and Anatolius. The chairmen put the resolution of these two to the vote, and it was carried by acclamation. This expression of contrary views in an *interrogatio* was unusual at an ecumenical council, and is to be explained by the fact that this particular issue was one without doctrinal implications and where no one felt strongly, except the unfortunate bishops of Asia.

The simple procedure of carrying a proposal by acclamation was used at Chalcedon for several of its decisions, including two of the most important – the condemnation (provisional as it turned out) of six bishops at the end of Session I, and the approval of the Chalcedonian Definition at the end of Session V.[76] In fact, the condemnation of Dioscorus in Session III was the only occasion at Chalcedon when a full *interrogatio* took place, in the sense of all the bishops present taking their turn to speak, though to this we could add the *interrogatio* in Session IV over the Tome of Leo, where we have individual responses from 161 bishops, at least half the total number present, while the remainder added their voice by acclamation.[77] Other *interrogationes* were much abbreviated, with only a few bishops speaking individually, though we cannot trust the acts to record every name: we find a mere nine individual responses in the *interrogatio* of

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[73] ACO II 1, p.411, §53.

[74] For Session II (III) see ACO II.1, p.274-5, §2-9 and p.280, §45. For Session V see p.319-21. Hefele-Leclerq, Histoire des conciles III 1 (Paris 1909), 487 claims that lay presidency at Chalcedon and Constantinople III 'was limited to a purely exterior role, consisting of maintaining order and of indicating the order of the questions; the task of discussion and resolution was left to the members of the synod.' This is a clericalist misrepresentation.

[75] ACO II 1, p.413-4, §9-21.

[76] ACO II 1, p.195; p. 326, §35.

[77] ACO II 1, p.289-305, §9. The attendance list names 305 names, but is fictitious. But the total will have been well below the 350 maximum figure (taking into the account the non-participation of the Egyptian bishops after Session I), because the five other metropolitans suspended at the end of Session I were only readmitted to the council later in this session, and most of their suffragans are likely to have absented themselves. See Price and Gaddis, III, 200-1.

Session VII over the territory of the patriarchate of Jerusalem, 18 in that of Session X over the reinstatement of Ibas, and 13 (as already noted) in that of Session XII over the disputed see of Ephesus.[78] That the speedy procedure of approving decrees by acclamation was often preferred is what we would expect: what was the point of *interrogationes* when there was overwhelming pressure on the bishops to accept the proposal made by the senior bishop present? At the same time, as we saw with the trial of Dioscorus, episcopal presidents at a session were generally careful to ascertain the mind of the meeting before pronouncing judgement. The system depended on the senior bishops seeing their role as one of discerning the common mind, rather than imposing solutions of their own.

II(d). The case of Ibas of Edessa

The procedures we have found in force at the Council of Chalcedon worked satisfactorily on the whole, but dangers in the system were vividly exposed at the two sessions of the council that dealt with the case of Bishop Ibas of Edessa. Ibas had been deposed at the 'Robber Council' of Ephesus in August 449.[79] He was allowed to appeal for reinstatement at the Council of Chalcedon two years later. Since the Robber Council had already been discredited at the first session, the success of his appeal was predictable, but the course of the debate did not run smooth. At Session IX[80] the lay presidents allowed Ibas' appeal, and then handed over (in effect) to the Roman legates, who secured the reading of the decision broadly in his favour delivered by Photius of Tyre and Eustathius of Berytus back in February 449. The Roman legates got these same two bishops, who were themselves present at this session, to confirm their judgement, and then asked the other bishops for their opinion. The response was not the reinstatement of Ibas by acclamation that they had been angling for, but a hostile silence.[81] The session ended in disarray.

The bishops reconvened on the following day.[82] Consulted by the lay chairmen, they divided into two parties, one favouring Ibas' reinstatement, and one demanding a hearing of the case against him. Four Edessan clergy were allowed to enter the council, and present copies of the acts of the proceedings in Ibas' case both at Berytus in February 449 (prior to the judgement by Photius and Eustathius) and at Ephesus II. The chairmen secured the reading of the proceedings of Berytus, which contained details of many damaging charges against Ibas.[83] The acts (as read out) concluded with his notorious Letter to Mari the Persian, which contained a highly critical account of the First Council of Ephesus and interpreted the Formula of Reunion of 433 as an admission by Cyril of Alexandria that his earlier teaching had been heretical. He was allowed to respond by presenting a testimonial in his favour signed by 65 of the Edessan clergy. The chairmen then gave instructions for the reading of the relevant part of the Acts of Ephesus II, but this was frustrated by strong episcopal opposition; the bishops had been too embarrassed by the reading of acts of Ephesus at Chalcedon's Session I to have the experience repeated. The chairmen gave way, and asked the bishops to proceed without further ado to pass judgement on Ibas' appeal. Eighteen verdicts were delivered individually, while the rest of the bishops responded by acclamation.[84]

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[78] ACO II 1, p.364-5, §7-15; p.398-401, §161-78; p.413-4, §9-21.
[79] For an account of Ibas' career up till Chalcedon see Price and Gaddis, II, 265-70.
[80] Session X in the Greek Acts, ACO II 1, p.370-5.
[81] ACO II 1, p.375, §13. Compare the 'immense silence' in the Roman senate that greeted the demand from the emperor Elagabalus that Severus Alexander be stripped of the title of Caesar, according to the *Historia Augusta*, *Vita Elagabali* 13.2.
[82] Session X (XI in the Greek Acts), ACO II 1, p.375-401.
[83] ACO II 1, p.378-93.
[84] ACO II 1, p.398-401, §161-79.

It fell to Paschasinus, as the senior papal legate, to deliver the first verdict. His sentence in favour of the reinstatement of Ibas in the see of Edessa was right and proper, but unfortunately it included the statement 'and from the reading of his letter we have found him to be orthodox'.[85] We can only suppose that he had either failed to grasp the contents of the letter (his Greek was limited, and his attention may have been wandering), or did not appreciate how offensive it was to the eastern bishops, who recognized the need to reinstate Ibas but had vast respect for Cyril and Ephesus I. But conciliar etiquette involved, as we have seen, a requirement of unanimity. This made it impossible for the bishops who spoke after him to express disagreement. Maximus of Antioch actually repeated his commendation of the letter, not out of conviction (for he was firmly in the Cyrillian camp and had been a protégé of Dioscorus), but because his tenure of his own see was insecure and depended on papal support.[86] The other bishops, as they delivered their verdicts, sagely omitted all reference to the letter. Paschasinus' and Maximus' praise of the letter proved an acute embarrassment when the Three Chapters, one of which was this same Letter to Mari, were condemned a century later by both the emperor Justinian and Constantinople II. Justinian argued that the approval of the letter by a mere two bishops had not committed the whole council,[87] but the seniority of Paschasinus made it impossible to dismiss his verdict so lightly. Instead, a more desperate expedient was adopted. It was claimed that Paschasinus and Maximus had not been referring to the Letter to Mari at all, but to the Edessan testimonial in Ibas' support.[88] Quite apart from the implausibility of this claim, the silence of the other bishops remained hard to explain. This was the Achilles' heel in the condemnation of the Three Chapters, the issue that was taken up with most energy by Justinian's critics, and which undermined the attempt to show, however correctly, that the Council of Chalcedon had had no intention whatsoever of giving its approval to attacks on Cyril of Alexandria.

But this does not exhaust the infelicity of Paschasinus' verdict. He acquitted Ibas and restored him to his see without requiring him to anathematize Nestorius, despite the impression of sympathy towards Nestorius given in the Letter to Mari. Yet Theodoret had only been reinstated after anathematizing Nestorius in the presence of the council,[89] and Ibas did not deserve more favourable treatment. After Paschasinus had delivered his generous verdict, the *interrogatio* proceeded with confirmatory verdicts by a series of eastern bishops, as conciliar protocol demanded. Even Juvenal of Jerusalem, who must have detested Ibas, felt obliged to give grudging assent: 'It is my wish that the most devout Ibas should be treated with clemency, also because he is elderly, so as to recover episcopal dignity, being orthodox.'[90] Thalassius of Caesarea in Cappadocia touched on the real issue, when he mentioned that, according to the ruling issued by Photius of Tyre after the hearing at Berytus, Ibas had promised to pronounce a public anathema against the heresies of which he was accused when he returned to Edessa,[91] though no one at Chalcedon asked whether he had kept his promise.[92] A shift may be detected, however, in the eighth of the verdicts delivered, that of Stephen of Ephesus: 'I too decree along with the holy fathers that the most devout Ibas, anathematizing Nestorius and Eutyches and their impious

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[85] ACO II 1, p.398,26-7.

[86] ACO II 1, p.399,10-11. The quashing of all the verdicts of Ephesus II would have led to the reinstatement of Maximus' predecessor Domnus, but Maximus could appeal to the fact that Pope Leo had accepted his election, as stated by the Roman legates themselves (p.397,9-12).

[87] Justinian in his *On the orthodox faith*, in E. Schwartz, Drei dogmatische Schriften Justinians, ABAW.PH NF 18 (Munich 1939), p.100, and as cited by Facundus, *Pro defensione trium capitulorum* V 1.18,21.

[88] See Facundus, *De defensione* V 1.8,22 and 2.17-18, and Vigilius, *Second Constitutum*, ACO IV 2, p.161-2, §128-31.

[89] ACO II 1, p.368,27.

[90] ACO II 1, p.399,19-21.

[91] ACO II 1, p.399,25-7, referring to p.374,6-9.

[92] See Price (n. 40), I, 91, n. 48: it is doubtful whether Ibas was able to return to Edessa to fulfil his promise.

doctrines, should be in the order of the priesthood.'[93] While approving Ibas' reinstatement, Stephen was suggesting that he be made to anathematize Nestorius before the session ended, and Stephen's form of words was echoed by two of the bishops who spoke after him (Romanus of Myra and Eunomius of Nicomedia). At this point the assembled bishops found courage in numbers, and exclaimed together, 'Let him now anathematize Nestorius and Eutyches', which he proceeded to do.[94] This did not make the anathematization a condition of his reinstatement, since Paschasinus' verdict was not questioned; note how until his verdict the bishops were careful to call Ibas 'the most devout' but not 'bishop', while in the remaining responses to the *interrogatio* many of the bishops (including Romanus) gave him this title. But at least he had now given proof of orthodoxy. The council had only narrowly escaped the disaster of reinstating him without his anathematizing Nestorius.

In all, Paschasinus' verdict on Ibas illustrates the dangers in a system where the judgement uttered by the senior bishop present (whether he or a layman was technically in the chair) was taken to express the common consensus and was therefore not open to revision. The principle that the chief presiding bishop expressed not a personal judgement but the mind of the meeting was in one way a democratic one, but by silencing dissent it was in danger of producing short-term solutions and long-term problems. And such problems were all the harder to resolve because of the respect paid to past councils and the reluctance to revise their decrees.

II(e). Earlier and later councils

The procedure that we have found in the Acts of Chalcedon was no novelty, and can be paralleled in the Acts of Ephesus I. This is not to say that all the same improprieties are exemplified there. We saw how the condemnation of Dioscorus at Chalcedon was vitiated by the lack of a list of charges and an over-emphasis on the formal offence of ignoring a threefold summons: to this may be contrasted the condemnation of Nestorius at the first session of Ephesus I, where approval was given to a properly indited verdict, convicting him not only of ignoring summonses but also of heresy, though admittedly without defining the nature of his heresy.[95] Noteworthy also are the *interrogationes* carried out in this same first session, which were predictably unanimous. After a reading of both the Nicene Creed and Cyril of Alexandria's Second Letter to Nestorius, Cyril (as one of the presidents) asks the bishops for their judgement as to whether the letter accorded with the creed. Individual judgements by 125 of 153 names in the attendance list are given in the acts verbatim, followed by the statement, 'And all the remaining bishops with places in the assembly gave the same testimony.'[96] The claim is being made that every single bishop spoke in approval of Cyril's letter. There follows a reading of the Second Letter of Nestorius to Cyril, followed by a similar *interrogatio*, in which, however, only 35 bishops speak individually, while the rest express their judgement by acclamation.[97] After the reading of two florilegia – one of testimonies by orthodox fathers, the other of heretical statements from the writings of Nestorius –, and a letter from Bishop Capreolus of Carthage deploring doctrinal innovation, the minutes of the session close abruptly with a decree deposing Nestorius, followed by the subscriptions of 197 bishops

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[93] ACO II 1, p.399,36-8.
[94] ACO II 1, p.401,9-13.
[95] ACO I 1/2, p.54.
[96] ACO I 1/2, p.13-31, §44-5. The demand on each bishop to say the same thing in different words strained the linguistic competence of some of them. One bishop (Spudasius of Ceramus in Caria), intending to say that the letter was synonymous with the creed, described it as 'homonymous' (`oJmwvnumon`) with it (p.24,10), while another (Phoebammon of Coptos in the Thebaid) complimented the letter with performing a 'correction' (`diovrqwsin`) of orthodox doctrine (p.30,7).
[97] ACO I 1/2, p.31-36, §46-8.

(outnumbering the 154 bishops named in the attendance list).[98] The acts of the session cannot be taken as a verbatim record, with everything in correct temporal sequence and with nothing either inserted or omitted: rather, they are a skilful compilation, produced after the session for propaganda purposes.[99] How was the decree of deposition approved? In such cases *interrogatio* was the proper procedure; but if it had been carried out, it would surely have come in the acts. The presidents must have reasoned that, since the bishops had already anathematized Nestorius by acclamation after the reading of his letter to Cyril,[100] a further *interrogatio* was unnecessary, and it was sufficient for the bishops to sign the verdict. The extreme baldness with which the sentence is presented (it is introduced abruptly and no discussion is recorded) may reflect an awareness that the attendant discussion that must surely have taken place was too slight to be recorded. The subscription list shows the unique importance attached to these lists, and the way in which they were augmented through securing the signatures of bishops who had not attended the session.

Ephesus II made much use of *interrogatio* in its judgement of individuals. The quashing of Eutyches' conviction at the Home Synod of 448 was decreed in an *interrogatio* in which 113 council members spoke individually, out of the 135 names in the attendance list.[101] The condemnation of Eutyches' persecutors Flavian of Constantinople and Eusebius of Dorylaeum was also decreed in an *interrogatio*, and in one where (as with the condemnation of Dioscorus at Chalcedon) the chairman did not simply pose a question, but issued a verdict and then asked the other bishops to confirm it, which 101 council members proceeded to do, after the papal legate Hilary had tried in vain to halt the proceedings.[102] At the later session preserved in the Syriac Acts we find a whole series of condemnations, starting with Ibas of Edessa: Dioscorus (as principal chairman) pronounced a verdict of condemnation, which was then confirmed by 20 bishops speaking individually, while the rest gave their assent by acclamation.[103] The same procedure was followed in the cases of Daniel of Carrhae, Irenaeus of Tyre, Aquilinus of Byblus, and Theodoret of Cyrrhus.[104] At the first session of the council, an *interrogatio* was even conducted to approve the reading of the Acts of the Home Synod of 448;[105] and yet this council has standardly been criticized for riding roughshod over proper conciliar procedure.

If this was the pattern with the councils of the fifth century, we may note certain developments in the later ecumenical councils, starting with Constantinople II (553). The first three sessions of this council were taken up with ineffectual negotiations with Pope Vigilius and other bishops who declined to attend. Sessions IV-VII were devoted to a reading of substantial collections of documents and excerpts, to prove the heretical character of the Three Chapters and the perversity and inconsistency of Vigilius' refusal to approve the work of the council. The patriarchs who presided over the council (as we showed above) introduced and concluded the readings, and a few of the other bishops spoke up from time to time to introduce documents or explain them – Theodore Ascidas, bishop of Caesarea in Cappadocia and the emperor's chief ecclesiastical adviser, played a prominent role in this regard –, but the role of the synodal fathers

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[98] ACO I 1/2, p.39-64.

[99] See Th. Graumann, '"Reading" the First Council of Ephesus (431)', in Chalcedon in Context (see n. 22), 27-44, esp. 31-6.

[100] ACO I /2, p.35-6, §48.

[101] ACO II 1, p.182-6, §884. The attendance list is on p.77-82.

[102] ACO II 3, p.238-52. The Greek version in ACO II 1 records the responses of only the first five speakers.

[103] Flemming, op. cit. (n. 21), 61-9.

[104] Flemming, 69-79, 109-13. In the case of the most serious culprits, Ibas, Irenaeus and Theodoret, a double penalty was imposed, contrary to a rule observed at other councils and in canonical legislation: they are not only deposed, but also excommunicated. Flemming, p. 61,20-4 (Ibas); p.75,10-14 (Irenaeus); p.109,31-3 (Theodoret).

[105] ACO II 1, p.97-9, §198-216.

as a body was reduced to one of punctuating the proceedings with appropriate acclamations.[106] The final, eighth session was taken up by a reading of the acts of the previous sessions and of a substantial text summing up the work of the council and concluding with fourteen dogmatic canons. The assembled bishops may be presumed to have uttered appropriate acclamations, but these were not thought worth recording. The canons are followed immediately by the subscriptions of the bishops – in a list which (like similar lists in the Acts of Ephesus I and Chalcedon) includes some bishops who had not attended the council.[107] Throughout the proceedings there was no free discussion and no *interrogationes*. Instead, the Acts consist, in the main, of pre-prepared documents, introduced by the presidents, and confirmed by episcopal subscription. This means that, instead of a meeting of bishops whose decisions are written up in conciliar acts, as at Chalcedon, what we have here, effectively, is a text composed beforehand and then heard, approved, and published by an ecumenical council.[108]

Constantinople III, in contrast, was not sewn up in advance. Open confrontation between the dyotheletes, led by the Roman delegates, and the monotheletes, led by Patriarch Macarius of Antioch, continued until the routing of the latter in Sessions VIII and IX. The first seven sessions were taken up by a reading of the documentation presented by both sides. At the end of Session VII Patriarchs George of Constantinople and Macarius of Antioch, and the bishops under their jurisdiction, were asked to state whether they agreed with the dyothelete declarations of faith that had been received from Pope Agatho and the recent synod in Rome.[109] The required *interrogatio* was conducted in Session VIII.[110] The first response was by George of Constantinople, who abandoned his monothelete stance and came over to the winning side. There followed individual responses by 16 out of the 29 bishops of his patriarchate who were present, after which all the others made a joint profession by acclamation. All of them expressed agreement with the papal documents, with one notable exception: Theodore of Melitene presented a written statement that argued against any definition of the number of wills and operations, in terms that echoed the *Typos* issued by Constans II in 648 and long since condemned by Rome;[111] he added that his statement had the support of three other bishops of the Constantinopolitan patriarchate who were present as he spoke. These three, however, who were passed over in the *interrogatio* proper, withdrew their support as soon as they could, claiming that Theodore had lied about them, a claim that did not impress the council. After acclamations in praise of the emperor Constantine IV, who was chairing the session, the *interrogatio* continued, addressed first to Macarius of Antioch, who remained faithful to his monothelete convictions. It concluded with individual confessions of faith by the four other oriental bishops present at the session – Macrobius metropolitan of Seleucia in Isauria and three of his suffragans, all of whom, deserting their patriarch Macarius, made dyothelete professions. Later in the same session the council fathers anathematized Macarius by acclamation, and he was stripped of his episcopal insignia there and then.[112] In

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[106] For Ascidas' role see Price, op. cit. (n. 40), I, 277-9 and II, 3-4. Episcopal acclamations occur at ACO IV 1, p.56, 72, 181-2. The acts attribute many other remarks to 'the holy council', but these are statements made by one of the presidents.

[107] For an analysis of the subscription list see Price, op. cit., II, 294-6.

[108] The Lateran Synod of 649 (ACO² I) is another example of reducing a council's role to the hearing and signing of pre-prepared documents, even if we do not accept that the bishops listened in silence to a reading of bogus 'minutes' by notaries (as suggested by R. Riedinger) and allow at least some of them a speaking role (as suggested by P. Conte). See Riedinger, Die Lateransynode von 649 und Maximos der Bekenner, in Maximus Confessor: Actes du Symposium sur Maxime le Confesseur, Freiburg/Schweiz 2.-5. September (Freiburg, 1982), 111-21, at 120, and Conte, Il Sinodo Lateranense dell' ottobre 649 (Vatican City, 1989), 130.

[109] ACO² II 1, p.188.

[110] ACO² II 1, p.196-214.

[111] The two documents are in ACO² II 1, p.202-4 and ACO² I, p.208-10.

[112] ACO² II 1, p.242,9-14.

Session X, ten days later, Theodore of Melitene and the three bishops who had supported him made their peace with the council by producing a dyothelete statement of faith.[113] The unusual feature of the debate in Session VIII was, of course, Theodore's refusal to follow the dyothelete consensus of his patriarch and fellow bishops in the patriarchate of Constantinople, even though (as we showed above) conciliar *interrogatio* was not intended to elicit dissent. We may suppose that his courageous stance was prompted by the continued resistance of Macarius of Antioch and by the unimpressively tardy conversion of George of Constantinople to the dyothelete cause.

After further sessions devoted largely to the reading of documents, at the beginning of Session XIII 'the holy council' (probably George of Constantinople) produced a draft decree, condemning the memory of the leading monotheletes of an earlier generation, including four patriarchs of Constantinople and Pope Honorius of Rome. The imperial officials chairing the meeting, however, objected that the council had not yet heard sufficient documentation to justify the condemnation of all of these names;[114] a reading of the required documentation duly followed, taking up the rest of the session. Finally, at the last session of the council, attended again by the emperor after an absence, the full conciliar definition was read out, and, at the emperor's invitation, approved by episcopal acclamation.[115] In the Acts the text of the definition is followed immediately, before the acclamations, by the bishops' signatures, in order to link the subscription list as closely as possible to the definition;[116] but manifestly the signatures will have been collected at the end of the session.

In all, the Acts of Constantinople III show the same preference as at Constantinople II for acclamations and subscription lists as ways to express approval. The use of *interrogatio* at Session VIII was exceptional: the continued resistance to the council's will by some of the monotheletes made it necessary to secure individual statements of assent, so as to identify and crush opposition. After an initial hitch this was indeed achieved; only Macarius of Antioch sacrificed his rank to his principles. However traditional the procedure of *interrogatio*, its purpose on this occasion had been transformed: it was no longer an exercise in consultation, but a test of the orthodoxy of those interrogated.

With this new purpose, *interrogatio* remained prominent at Nicaea II. In Session II, the papal legates demanded to know whether the council accepted the teaching of Pope Hadrian, as contained in his letters to the emperors and to Patriarch Tarasius of Constantinople; they received the required assurances by acclamation, but an *interrogatio* followed, in which all the bishops present took part.[117] This will have seemed necessary after the failure of the attempt to hold the council in the preceding year, when iconoclast guardsmen broke up the meeting and iconoclast bishops exclaimed, 'We have conquered.'[118] Then in Session III the reading of the letters sent (supposedly) by the oriental patriarchs was followed by an *interrogatio*, consisting of 35 individual professions of orthodoxy, completed by the acclamations of the remaining bishops. The 35 speakers included every one of the eleven iconoclast bishops who had only been reconciled during the council and were now keen to prove their orthodoxy.[119] Again, *interrogatio* had the function not to consult, but to impose orthodoxy on real or possible dissidents.

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[113] ACO² II 1, p.390-8.
[114] ACO² II 2, p.580-2.
[115] ACO² II 2, p.798.
[116] The same occurs in the Acts of Chalcedon, where the subscription list follows the Definition immediately in both the Greek and the Latin Acts (ACO II 1, p.337-51 and II 3, p.415-34).
[117] ACO² III 1, p.190-218.
[118] H.G. Thümmel, Die Konzilien zur Bilderfrage im 8. und 9. Jahrhundert (Padeborn, 2005), 118.
[119] ACO² III 1, p.270-8, §4 Basil of Ancyra, 8 Hypatius of Nicaea, 15 Gregory of Neocaesarea, 19 Gregory of Pessinus, 23 Theodore of Myra, 24 Leo of Iconium, 25 Leo of Rhodes, 26 George of Pisidaa, 31 Nicholas of Hierapolis, 32 Leo of Carpathus, 33 Theodosius of Amorium. For their status as reconciled iconoclasts see Hefele-Leclerq, Histoire des conciles, III 2 (Paris, 1910), 761-4.

II(f). Conclusion

The main concern of my discussion of conciliar procedure has been to explore the frequency and purpose of the use at the ecumenical councils of the traditional procedure of *interrogatio*. We have seen that it gave the bishops only limited scope, since on all matters of real importance they were expected to approve whatever had been recommended by the senior bishop (or bishops) present. This was inevitable in judgements relating to doctrine, where the purpose of *interrogatio* was to display the common mind of the Church and not the scandal of discord; but it also applied to judgements on individuals, as we saw in the verdicts delivered on both Dioscorus and Ibas at Chalcedon, where unanimity was not only required but presumed, with the verdict of the senior bishop taking immediate effect. One might have thought that this would have made the traditional *interrogatio* dispensable, and it was often abbreviated, with only a few of the bishops speaking individually, or replaced entirely by acclamations. But we have seen that it did not die out.

Interrogationes were generally preferred to acclamations in the trials of individuals, for the obvious reason that natural justice (and secular parallels, such as trials in the senate) required that the judges gave their verdicts individually. We discussed above the partial exception to this practice in the condemnation of Nestorius at Ephesus I. If at Chalcedon there was no *interrogatio* for either the condemnation of Dioscorus at Session I or the rejection of Bassianus' claims at Session XI, it is notable that both these verdicts were felt to be insecure, and that in each case a fresh hearing, with an *interrogatio*, took place at a subsequent session.

Interrogationes were notably lacking in the approval of the great doctrinal definitions of Chalcedon, Constantinople II, Constantinople III, and Nicaea II. Once the faith had been presented in a formal and finalized decree, the bishops were expected to recognize it at once, and respond with resounding acclamations. This explains the sequence of debate in the decisive Session V of Chalcedon. This session began with the reading of a definition of faith that had already been approved by the bishops at a preliminary meeting. The bishops were startled to find that the lay chairmen required them not to acclaim the document but actually subject it to revision, a procedure that struck them as shocking, quite apart from the fact that they feared what revision might bring. But once the text had been amended and the new version solemnly presented, they were happy to do what they had wanted to do all along – approve the document without debate and by acclamation.[120]

At a preliminary stage, however, of a council's work *interrogatio* was sometimes employed even in relation to the faith, though with the purpose not of elucidating doctrine but of bolstering adherence to it. At Session IV of Chalcedon Leo's Tome was approved by a full *interrogatio*, doubtless in order to atone for the interruption of the reading of the Tome at Session II by bishops doubtful of its orthodoxy.[121] At Session I of Ephesus I Cyril's Second Letter to Nestorius was likewise approved by a full *interrogatio*, presumably for the purpose of making all the bishops present commit themselves individually to the pro-Cyrillian, anti-Nestorian cause. Akin to this was the use of this procedure in doctrinal debates at Constantinople III and Nicaea II, where its purpose was not consultation but the suppression of dissent.

In all, there was only a superficial likeness between the procedure of the Roman senate and that of ecumenical councils. The explanation lies not in a decline in freedom (as if the senate under the emperors was ever free) but in the difference between the secular and the sacred. Councils spoke of the things of God with the voice of God, and that voice was represented at the human level by unanimity, not by the variations of personal opinion. The degree of disagreement and contentious debate in the Acts of Chalcedon was exceptional, and was soon replaced by a more edifying myth. As Ferrandus of Carthage wrote in the mid-sixth century, 'The whole

[120] ACO II 1, p.317-26, esp. §7-8, 11, 18, 35.
[121] ACO II 1, p.277-8, §24-6

Council of Chalcedon, since the whole of it is the Council of Chalcedon, is true; no part of it is open to criticism; whatever we know to have been uttered, transacted, decreed and confirmed there was worked by the ineffable and secret power of the Holy Spirit.'[122] Had not St Paul declared, 'If there is any fellowship of the Spirit, complete my joy, that you be of the same mind, having the same love, being joined in soul and of one mind' (Phil 2:1-2)? *More suo*, the ecumenical councils of the Church of late antiquity put this precept into practice.

Ecumenical councils were summoned to clarify doctrine, where the fact of revelation implied that there was but one correct set of answers. These had been revealed by Jesus Christ; and the supreme president of each meeting was not an ecclesiastical hierarch but Christ himself, present in the open book of the gospels that presided over every session.[123] Every orthodox bishop, by definition, was faithful to the teaching of Christ, and therefore in agreement with his peers; this was one of the factors that accounts for joint presidency. Disagreement was necessarily a sign of heresy or at best confusion. The role of councils was to identify and condemn heresy, while confusion evaporated like mist before the light of the truth.

[122] Ferrandus, *ep*. 6.3, PL 67. 923C.

[123] This was stated in each attendance list from the time of Chalcedon. For example, that of Session I of Chalcedon concludes, 'Displayed in the centre was the most holy and immaculate gospel-book' (ACO II 1, p.65,13-14).